

[4 EDW. 7.]

Tramways Orders Confirmation
(No. 2) Act, 1904.

[Ch. clxxxi.]



CHAPTER clxxxi.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Bishop Auckland Shildon and Spennymoor Tramways Dewsbury Corporation Tramways East Ham Urban District Council Tramways Ossett Corporation Tramways Sunderland Corporation Tramway and West Ham Corporation Tramways. [15th August 1904.] A.D. 1904.

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed : 33 & 34 Vict.
c. 78.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Tramways Orders Confirmation (No. 2) Act 1904. Short title.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set Confirmation
of Orders
in schedule.

[Price 5s.]

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A.D. 1904. — out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act.

SCHEDULE.

LIST OF ORDERS.

BISHOP AUCKLAND SHILDON AND SPENNYMOOR TRAMWAYS.—Order authorising the United Kingdom Tramway Light Railway and Electrical Syndicate Limited to construct tramways in the Urban Districts of Bishop Auckland Shildon and East Thicky and Spennymoor and the Rural Districts of Auckland and Durham all in the County of Durham and for other purposes.

DEWSBURY CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Dewsbury to construct tramways in their Borough.

EAST HAM URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of East Ham to construct certain tramways in their district authorised by the East Ham Urban District Council Tramways Order 1900 and for other purposes.

OSSETT CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Ossett to construct tramways in their Borough.

SUNDERLAND CORPORATION TRAMWAY. — Order authorising the Mayor Aldermen and Burgesses of the County Borough of Sunderland to construct an additional tramway in their Borough.

WEST HAM CORPORATION TRAMWAYS. — Order authorising the Mayor Aldermen and Burgesses of the County Borough of West Ham to construct a tramway in their Borough.

BISHOP AUCKLAND SHILDON AND SPENNYMOOR.

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Order authorising the United Kingdom Tramway Light Railway and Electrical Syndicate Limited to construct tramways in the Urban Districts of Bishop Auckland Shildon and East Thickley and Spennymoor and the Rural Districts of Auckland and Durham all in the County of Durham and for other purposes.

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Spennymoor.*

Preliminary.

1. This Order may be cited as the Bishop Auckland Shildon and Spennymoor Tramways Order 1904. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or are expressly varied by this Order. Incorporation
of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order— Interpretation.

The expression "the tramways" means the tramways and works by this Order authorised :

The expression "the undertaking" means the undertaking by this Order authorised :

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The United Kingdom Tramway Light Railway and Electrical Syndicate Limited shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." Promoters.

Lands.

5. The Promoters may by agreement from time to time purchase take on lease and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or otherwise dispose of any such lands not required for such purposes Provided that they shall not at any time hold for such purposes more than five acres of land Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land acquired by them under this section. Lands by
agreement.

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Construction of Tramways.

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Spennymoor.
Construction
of tramways.*

6. The Promoters may subject to the provisions of this Order—

(a) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all proper rails points plates sleepers junctions turntables turn-outs weighbridges crossovers passing places works and conveniences connected therewith and for the purposes thereof and may work and use the same ;

(b) Erect construct and provide on any lands acquired under the powers of this Order offices stables sheds carriage engine boiler and dynamo houses and other buildings for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situated within the parishes of St. Andrew Auckland St. Helen Auckland Pollard's Lands Coundon Westerton Middlestone Whitworth Without Eldon in the rural district of Auckland Whitworth Tudhoe Merrington Lane and Low Spennymoor in the urban district of Spennymoor Sunderland Bridge in the rural district of Durham Shildon and East Thickley in the urban district of Shildon and East Thickley Bishop Auckland in the urban district of Bishop Auckland all in the county of Durham or in some or one of such parishes and districts and are as follows (that is to say):—

Tramway No. 1 commencing in the parish of Shildon in the district of the urban council of Shildon and East Thickley at a point in New Shildon Road north-west of the level crossing of the North Eastern Railway leading to Shildon Waggon Works 50 feet or thereabouts south-east of the south-west corner of Adelaide Street New Shildon and passing thence along New Shildon Road in a north-westerly direction to and over the level crossing of the Surtees Railway to a point in Main Street 200 feet or thereabouts west of the south-west corner of York Street in the town and parish of Shildon at the junction and commencement of Tramways Nos. 2 and 9 :

Provided further that where Tramway No. 1 crosses the Surtees Railway at the level the Promoters shall provide and maintain such safety appliances and work the tramway in accordance with such conditions as the Board of Trade may from time to time prescribe

and that on non-compliance with this provision the Promoters shall be subject to a penalty of five pounds for every day on which such non-compliance continues :

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Tramway No. 1 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

From a point 1 chain or thereabouts north-west from the commencement of the tramway in the village of New Shildon in the parish of Shildon to a point situate 4 chains or thereabouts north-west therefrom :

The total length of Tramway No. 1 is 4 furlongs 5 chains of which 4 chains is double line and 4 furlongs 1 chain is single line.

Tramway No. 2 commencing in the parish of Shildon by a junction with Tramways Nos. 1 and 9 at their termination and commencement respectively in Main Street in the town of Shildon thence in a westerly direction along West Street and the highway leading to Tindale Crescent to the western boundary of the parish of Shildon all within the district of the urban council of Shildon and East Thickley thence along the said highway in a north-westerly direction to Tindale Crescent all within the parish of St. Andrew Auckland and the district of the rural council of Auckland to a point 65 feet or thereabouts north-west of the north-west corner of the Primitive Methodist Chapel Tindale Crescent at the junction and commencement of Tramways Nos. 3 and 10 :

Provided further that where Tramway No. 2 crosses the railway of the West Durham Wallsend Colliery Company at the level the Promoters shall provide and maintain such safety appliances and work the tramway in accordance with such conditions as the Board of Trade may from time to time prescribe and that on non-compliance with this provision the Promoters shall be subject to a penalty of five pounds for every day on which such non-compliance continues :

Tramway No. 2 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

(a) From a point 190 feet or thereabouts west from the commencement of the tramway in the town of Shildon in the parish of Shildon to a point situate 3 chains or thereabouts westward therefrom ;

(b) From a point 350 feet or thereabouts north-west of the west boundary of the parish of Shildon in the parish of St. Andrew Auckland to a point 3 chains or thereabouts further north-west :

The total length of Tramway No. 2 is 1 mile 6 furlongs 7 chains of which 6 chains is double line and 1 mile 6 furlongs 1 chain is single line.

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Tramway No. 3 commencing in the parish of St. Andrew Auckland by a junction with Tramways Nos. 2 and 10 at their termination and commencement respectively in the highway leading from Tindale Crescent to Bishop Auckland thence in a north-easterly direction to Watling Street and thence along the said street in a northerly direction to the junction of Woodhouse Close Lane and Gitty Lane with the said road at Cabin Gate all within the parish of St. Andrew Auckland and the district of the rural council of Auckland thence along the centre of the said street for a distance of 1035 feet or thereabouts north-east of the north-west corner of Cabin Gate on the parish boundary dividing the parishes of St. Andrew Auckland and Bishop Auckland in the district of the rural council of Auckland and urban council of Bishop Auckland thence in a northerly direction along Cockton Hill and Station View to a point in South Road 20 feet or thereabouts south-west of the south-west corner of Peel Street all within the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland at the junction and termination of Tramway No. 9 and commencement of Tramway No. 4:

Tramway No. 3 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line:—

- (a) From a point 240 feet or thereabouts north-east from the commencement of the tramway in the parish of St. Andrew Auckland to a point situate 3 chains or thereabouts further north-east;
- (b) From a point 850 feet or thereabouts south from the north-west corner of Cabin Gate in the parish of St. Andrew Auckland to a point situate 3 chains or thereabouts further south;
- (c) From a point 20 feet or thereabouts north from the south-east corner of Cleveland Street in the parish and town of Bishop Auckland to a point situate 3 chains or thereabouts further north:

The total length of Tramway No. 3 is 1 mile 4 furlongs 5 chains of which 9 chains is double line and 1 mile 3 furlongs 6 chains is single line.

Tramway No. 4 commencing in the parish of Bishop Auckland in the district of the urban council of Bishop Auckland at the junction of Tramways Nos. 3 and 9 at their terminations thence in a northerly direction along South Road and Newgate Street to a point in Newgate Street 10 feet or thereabouts north from the north-west corner of Victoria Street all within the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland at the junction and commencement of Tramways Nos. 5 and 7:

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Tramway No. 4 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

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From a point 340 feet or thereabouts north from the north-west corner of Flintoff Street in the parish and town of Bishop Auckland to a point situate 3 chains or thereabouts further north :

The total length of Tramway No. 4 is 1 furlong 9·47 chains of which 3 chains is double line and 1 furlong 6·47 chains is single line.

Tramway No. 5 commencing in the parish of Bishop Auckland at the junction between Tramways Nos. 4 and 7 at their termination and commencement respectively thence along Newgate Street to a point in Newgate Street 30 feet or thereabouts to the south of the north-east corner of Tenters Street in the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland at the commencement of Tramway No. 6 :

Tramway No. 5 will be laid as a single line throughout :

The total length of Tramway No. 5 is 2·88 chains.

Tramway No. 6 commencing in the parish of Bishop Auckland at the termination of Tramway No. 5 thence along Newgate Street in a northerly direction to the Market Place to a point in the Market Place 60 feet or thereabouts east of the south-east corner of St Anne's Church in the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland :

Tramway No. 6 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

From a point 70 feet or thereabouts east from the south-east corner of Fore Bondgate in the parish and town of Bishop Auckland to a point situate 4 chains or thereabouts further east :

The total length of Tramway No. 6 is 1 furlong 3·34 chains of which 4 chains is double line and 9·34 chains is single line.

Tramway No. 7 commencing in the parish and town of Bishop Auckland at the junction between Tramways Nos. 4 and 5 at their termination and commencement respectively thence in an easterly direction along Victoria Street and thence in a northerly direction to Durham Chare and thence in an easterly direction to Gaunless Bridge all in the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland thence in a south-easterly direction along the highway leading from Bishop Auckland to Coundon Gate in the parishes of Pollard's Lands and Coundon all in the district of the rural council of Auckland to a point in the said highway 90 feet or thereabouts south-west from the south-west corner of the George Inn in the village of Coundon Gate at the junction and commencement of Tramways Nos. 8 and 12 :

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Tramway No. 7 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

- (a) From a point 85 feet or thereabouts south of the south-west corner of Regent Street in the parish and town of Bishop Auckland to a point situate 3 chains north ;
- (b) From a point 250 feet or thereabouts east from the western boundary of the parish of Coundon in the parish of Coundon to a point 3 chains or thereabouts further east ;
- (c) From a point 540 feet or thereabouts north-east from the north-west corner of the Sportsman Inn in the village of Canney Hill in the parish of Coundon to a point situate 3 chains or thereabouts further north-east :

The total length of Tramway No. 7 is 1 mile 1 furlong 8·70 chains of which 9 chains is double line and 1 mile 0 furlongs 9·70 chains is single line.

Tramway No. 8 commencing in the parish of Coundon at the junction of Tramways Nos. 7 and 12 at their termination and commencement respectively thence along the highway from the village of Coundon Gate to Spennymoor in a north-easterly direction through the parishes of Coundon Westerton Middlestone and Whitworth Without all in the district of the rural district council of Auckland thence in a north-easterly direction along High Street in the parish of Whitworth thence along Cheapside and in a north-westerly direction along King Street thence in a north-easterly and northerly direction along Durham Road through the village of Tudhoe Colliery to Nickynack Bridge in the parish of Tudhoe all within the district of the urban council of Spennymoor thence in a northerly direction through the village of Croxdale Colliery to the village of Croxdale in the parish of Sunderland Bridge in the district of the rural council of Durham to a point 100 feet or thereabouts south from the centre of the railway bridge over the North-Eastern Railway :

Tramway No. 8 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

- (a) From a point 350 feet or thereabouts north-east from the north-west corner of Park View Terrace in the parish of Coundon to a point situate 3 chains or thereabouts further north-east ;
- (b) From a point 110 feet or thereabouts south-west from the south-east corner of the road leading to Binchester Blocks in the parish of Westerton to a point situate 3 chains or thereabouts further south-west ;

- (c) From a point 290 feet or thereabouts south-west from the south-west corner of William Street in the village of Middlestone Moor in the parish of Westerton to a point 3 chains or thereabouts further south-west ;
- (d) From a point 100 feet or thereabouts north-east from the west boundary of the parish of Whitworth in the parish of Whitworth to a point situate 3 chains or thereabouts further north-east ;
- (e) From a point 130 feet or thereabouts north-east from the south-east corner of Princess Street in the parish of Whitworth in the town of Spennymoor to a point situate 3 chains or thereabouts further north-east ;
- (f) From a point 70 feet or thereabouts north-east from the south-east corner of James Street in the parish of Tudhoe in the town of Spennymoor to a point situate 3 chains or thereabouts further north-east ;
- (g) From a point 85 feet or thereabouts north-east from the north-west corner of South Terrace in the parish of Tudhoe in the town of Spennymoor to a point situate 3 chains or thereabouts further north-east ;
- (h) From a point 190 feet or thereabouts north from the north-west corner of the cemetery in the parish of Tudhoe to a point situate 3 chains or thereabouts further north ;
- (i) From a point 350 feet or thereabouts north from the north-east corner of Tudhoe Colliery Inn in the parish of Tudhoe to a point situate 3 chains or thereabouts further north ;
- (j) From a point 100 feet or thereabouts north-east from the north-east corner of Nickynack Bridge Hotel in the parish of Sunderland Bridge to a point 3 chains or thereabouts further north-east ;
- (k) From a point 1 chain or thereabouts from the termination of Tramway No. 8 in the parish of Sunderland Bridge to a point situate 4 chains further south :

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The total length of Tramway No. 8 is 5 miles 6 furlongs 0·50 chain of which 3 furlongs 4 chains is double line and 5 miles 2 furlongs 6·50 chains is single line.

Tramway No. 9 commencing in the parish of Shildon by a junction with Tramways Nos. 1 and 2 at their termination and commencement respectively thence in an easterly direction along Main Street thence in a northerly and easterly direction along Church Street thence in a northerly direction along Cheapside to North Terrace all in the parish of Shildon and the district of the urban council of Shildon and East Thickley thence in a north-easterly direction along highway to Front Row in the village of Eldon thence in a westerly direction along

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highway to the village of Eldon Lane all in the parish of Eldon thence along highway in a westerly north-westerly and northerly direction to the village of South Church thence in a north-westerly direction along Front Street and South Church Road to the northern boundary of the parish of St. Andrew Auckland all within the parish of St. Andrew Auckland and the district of the rural council of Auckland thence in a north-westerly and northerly direction along South Church Road thence in a westerly direction along Peel Street to South Road all in the parish and town of Bishop Auckland and in the district of the urban council of Bishop Auckland at the junction and termination of Tramway No. 3 and the junction and commencement of Tramway No. 4:

Provided further that where Tramway No. 9 crosses the railway of the North Eastern Railway Company at the level the Promoters shall provide and maintain such safety appliances and work the tramway in accordance with such conditions as the Board of Trade may from time to time prescribe and that on non-compliance with this provision the Promoters shall be subject to a penalty of five pounds for every day on which such non-compliance continues:

Tramway No. 9 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line:—

- (a) From a point 60 feet or thereabouts from the commencement of Tramway No. 9 in the parish of Shildon to a point three chains or thereabouts further east;
- (b) From a point 300 feet or thereabouts east from the north-east corner of Johns Street in the parish of Shildon to a point situate 3 chains or thereabouts further east;
- (c) From a point 70 feet or thereabouts west from the north-east corner of Front Row in the parish of Eldon to a point situate 3 chains or thereabouts further west;
- (d) From a point 550 feet or thereabouts south-west from the centre of the railway bridge on the Darlington and Consett line of the North Eastern Railway in the parish of St. Andrew Auckland to a point situate 3 chains or thereabouts further south-west;
- (e) From a point 240 feet or thereabouts north-west from the north-east corner of the Crown and Anchor public house in the parish of St. Andrew Auckland to a point 3 chains or thereabouts further north-west;
- (f) From a point 95 feet or thereabouts north from the junction of South Church Road and St. Andrew's Terrace in the parish and town of Bishop Auckland to a point situate 3 chains or thereabouts further north:

The total length of Tramway No. 9 is 3 miles 3 furlongs 4·24 chains of which 1 furlong 8 chains is double line and 3 miles 1 furlong 6·24 chains is single line.

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Spennymoor.*

Tramway No. 10 commencing in the parish of St. Andrew Auckland by a junction with Tramways Nos. 2 and 3 at their termination and commencement respectively thence in a north-westerly and westerly direction along highway to the boundary of the parish of St. Andrew Auckland in the parish of St. Andrew Auckland thence in a south-westerly direction along highway to the village of St. Helen Auckland in the parish of St. Helen Auckland and all within the district of the rural council of Auckland to a point 75 feet or thereabouts north-east from the north-east gate of the level crossing over the North Eastern Railway adjoining West Auckland Station :

Tramway No. 10 will be laid as a single line throughout excepting between the following points where such tramway will be laid as a double line :—

- (a) From a point 100 feet or thereabouts east from the south-east corner of Woodhouse Lane in the parish of St. Helen Auckland to a point situate 3 chains or thereabouts further east ;
- (b) From a point 1 chain or thereabouts north-east from the termination of Tramway No. 10 in the parish of St. Helen Auckland to a point situate 3 chains or thereabouts further north-east :

The total length of Tramway No. 10 is 1 mile 1 furlong 5·6 chains of which 6 chains is double line and 1 mile 0 furlongs 9·6 chains is single line.

Tramway No. 12 commencing in the parish of Coundon by a junction with Tramways Nos. 7 and 8 at their termination and commencement respectively thence in an easterly and north-easterly direction along highway to the village of Coundon thence in a south-easterly direction along Church Street and Collingwood Street all in the parish of Coundon and in the district of the rural council of Auckland to a point 260 feet or thereabouts east of the south-west corner of Avon Terrace in the village of Coundon :

Tramway No. 12 will be laid down as a single line throughout excepting between the following points where it will be laid as a double line :—

From a point 10 feet or thereabouts east of the south-west corner of Avon Terrace in the parish of Coundon to a point situate 3 chains or thereabouts further east :

The total length of Tramway No. 12 is 1 mile 0 furlongs 4 chains of which 3 chains is double line and 1 mile 0 furlongs 1 chain is single line.

7.—(1) Where any of the tramways by this Order authorised will pass along any main road or over any county bridge under the jurisdiction of the

For protection
of county
council of
Durham.

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county council of Durham the Promoters shall unless otherwise agreed with the county council before any such tramways shall be opened for traffic obtain such powers as may be necessary—

(a) For widening each such main road and county bridge (except the road beneath the Spennymoor Railway Bridge and the road over the Bishop Auckland Railway Bridge and the approaches to that bridge and also except the Coundon Bridge herein-after referred to) so that the carriageway thereof and of the approaches to any such county bridge shall be of a width throughout of not less than 27 feet with a footpath of not less than six feet in width :

(b) For reconstructing and widening and raising the roadway of the Coundon Bridge so that the carriageway over the said bridge and on the approaches thereto shall be not less than 27 feet in width with a footpath of not less than six feet in width.

(2) The Promoters shall prior to the opening for traffic of the tramways by this Order authorised carry out the widenings of streets and roads and the other works herein-before specified.

(3) The Promoters shall at their own expense make good to the reasonable satisfaction of the county surveyor any roads which may be subjected to extraordinary use by reason of the construction of the tramways or the diversion of traffic from the roads upon which such tramways are constructed or the concentration of traffic on any part of any such road and they shall to the like satisfaction maintain for a period of twelve months from the date when the county surveyor shall certify that such roads have been made good any roads which they may have made good under the provisions of this subsection.

(4) All works which may be carried out by the Promoters under the powers of this Order so far as they affect the county council or which they may be required to make under the provisions of this section shall be carried out in accordance with plans sections specifications and drawings previously submitted to and approved by the county surveyor but such approval shall not be unreasonably withheld and all materials used in the construction of the tramways or such works shall be subject to the like approval subject as aforesaid.

(5) Any matter in difference between the Promoters and the county council under this section shall be referred to the arbitration of a person to be nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

For protection
of Bishop
Auckland Gas
Company.

8. For the protection of the Bishop Auckland District Gas Company (in this section referred to as "the gas company") the following provisions shall (unless otherwise agreed between the gas company and the Promoters) apply and have effect:—

(1) Should it appear to the gas company at any time that the making of the tramways or the working thereof renders it necessary to alter the position of or otherwise to alter remove or duplicate

any gas mains pipes apparatus or other works of any kind or description whatsoever belonging to or controlled by the gas company the gas company may on giving 30 days' notice to the Promoters of their intention alter remove or duplicate the same and the Promoters shall repay the gas company the reasonable cost of the work and the superintendence thereof and shall indemnify the gas company against any claims for compensation or damages which the gas company shall reasonably incur in consequence of the carrying out of such work :

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- (2) If in the construction placing or maintaining of the tramways or the working thereof the Promoters omit to take all necessary precautions so as to prevent fusion or injurious electrolytic interference with the gas mains pipes or other metallic pipes structures or substances of the gas company or if they fail to comply with the Board of Trade regulations for the time being made under the provisions of the section of this Order the marginal reference to which is "Special provisions as to use of electrical power" and by reason of such omission or failure injury is caused to any gas mains pipes or other metallic pipes structures or substances of the gas company the Promoters shall make compensation to the gas company for any such injury which the gas company shall be proved to have sustained :

- (3) Any matter in difference between the Promoters and the gas company under this section as to what is necessary or reasonable shall be referred to the arbitration of a person nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

9.—(1) The tramways to be constructed or laid across or over or under the Shildon Lodge Branch Railway (in this section referred to as "the branch railway") belonging to Messrs. Bolckow Vaughan and Company Limited (in this section referred to as "the company") shall be so constructed maintained and worked as not to interfere in any way with the traffic of the said company into or out of their adjoining colliery yard over the branch railway.

For protection
of Bolckow
Vaughan and
Co. Ltd.

(2) The company shall not be liable for any injury which may be occasioned to the tramways of the Promoters laid across over or under the branch railway or to any rolling stock thereon in consequence of the working of the traffic into or out of the said adjoining colliery yard over the branch railway or in repairing the said railway Provided nevertheless that the company shall not be protected in the event of the injury being occasioned by the negligence or wilful default of the company or its servants or agents.

(3) Whenever the company shall find it necessary to widen or alter the said branch railway where it is crossed either on the level or above or below the tramways of the Promoters the Promoters shall pay to the company any additional expense which the company may reasonably and properly incur in

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(4) Wherever the tramways (as constructed or altered) cross the branch railway (as constructed or altered) of the company at the level the Promoters shall provide and maintain such safety appliances and work the tramways in accordance with such conditions as the Board of Trade may from time to time prescribe and on non-compliance with this provision the Promoters shall be subject to a penalty of five pounds for every day on which such non-compliance continues.

(5) Any matter in difference between the Promoters and the company under this section shall be referred to the arbitration of a person nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

*For protection
of Earl of
Eldon.*

10. For the protection of the Right Honourable John Earl of Eldon his heirs sequels in estate and assigns and his and their lessees and tenants and others authorised by them being owners or occupiers of any mines or minerals in within or under the parish of Eldon in the county of Durham (all of whom are in this section included in the expression "the colliery owners") the following provision shall apply and have effect:—

(1) If the colliery owners desire to construct a colliery railway across any road along which any of the tramways are by this Order authorised to be constructed the consent of the Promoters to such construction shall not be unreasonably withheld and such consent may be given subject to such terms and conditions as the Promoters may reasonably impose:

(2) Any matter in difference between the colliery owners and the Promoters as to whether the Promoters' consent is unreasonably withheld or as to the reasonableness of the terms or conditions sought to be imposed the same shall be referred to the arbitration of a person nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

*For protection
of North
Eastern Rail-
way Company.*

11. For the protection of the North Eastern Railway Company (in this section called "the Company") the following provisions shall unless otherwise agreed between the Promoters and the Company be observed and have effect (that is to say):—

(1) In this section the word "apparatus" includes posts electric mains wires cables tubes and any similar appliances to be used for the purposes of a motive power for the carriages running on the tramways and includes also any subways tunnels openings excavations channels and pipes for the purposes of such apparatus:

(2) Where any tramway by this Order authorised is laid along a road which is carried by means of a bridge over any railway of the Company the Promoters shall so construct maintain and use the said tramways and apparatus as not to interfere with the structure of such bridge or of the approaches thereto:

(3) In the event of any injury being caused to any such bridge or to the approaches thereto by the construction maintenance or user of the tramways or apparatus the Company may at the expense in all things of the Promoters after giving (except in cases of emergency when they shall give the longest notice possible) not less than seven clear days notice in writing of their intention so to do restore such bridge and approaches or the part or parts thereof which may be so injured to as good a condition as they were in before such injury was occasioned :

(4) All works which may be necessary in constructing and maintaining the tramways or apparatus over any such bridge and the approaches thereto shall be carried out in all things at the expense of the Promoters and under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the Company and in accordance with plans and specifications to be approved by him or in case of difference settled by arbitration as herein-after provided :

(5) In case it shall become necessary in consequence of the existence or user of the tramways or apparatus to strengthen the fabric of any such bridge the Company may after giving to the Promoters 14 clear days notice thereof in writing execute such works as their engineer may reasonably deem necessary but in all things at the expense of the Promoters :

(6) The materials forming the sub-structure of the tramways where the same cross any such bridge over the railway or are laid along the approaches thereto shall subject to the provisions of this section be such as shall be reasonably approved of by the Company :

(7) Whenever the Company shall require whether in consequence of the existence or user of any such tramway or otherwise to lengthen strengthen reconstruct alter or repair any bridge over which any tramway of the Promoters is laid or the approaches thereto and shall find it necessary for effecting any of such purposes that the working and user of any of the said tramways over any such bridge or approaches shall be wholly or partly stopped or delayed or that the tramways or any apparatus connected therewith shall be wholly or in part temporarily diverted or removed and shall (except in cases of emergency when they shall give the longest notice practicable) give to the Promoters seven clear days' notice in writing requiring such stoppage delay diversion or removal the working of the tramway shall be stopped or delayed or the tramways or apparatus shall be diverted or removed accordingly by and at the expense in all things of the Promoters and under the superintendence of the engineer of the Company (if such engineer shall give such superintendence) but only for so long as it shall be absolutely

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necessary for effecting such purpose and the Company shall not be liable for any compensation in respect of such stoppage or delay or in any way relating thereto. If the Promoters after such notice make default in diverting or removing any such tramways or apparatus the Company may at the reasonable expense of the Promoters effect such diversion or removal:

- (8) The Promoters shall be responsible for and make good to the Company all losses damages and expenses which may be occasioned to the Company or any of their works or property or to the traffic on their railways by reason of the execution or failure of any of the intended works or by reason of any act default or omission of the Promoters or of any person in their employment or of any contractors for the intended works or any part thereof or otherwise not being losses damages or expenses arising from competition and the Promoters shall effectually indemnify the Company from all claims and demands upon them by reason of such execution or failure or of any such act default or omission. Provided that the Company shall not admit or compromise any such claim or demand without the consent in writing of the Promoters:
- (9) If any difference shall arise under this section between the Promoters and the Company touching anything to be done or omitted to be done or not to be done or the reasonableness of any requirements or of any charges or in any manner in connexion with the foregoing provisions of this section the matter in difference shall unless otherwise agreed be determined by a single arbitrator to be appointed in case of difference by the Board of Trade:
- (10) If having regard to the relative position of the works of the Promoters and the works of the Company at any point where the tramways will be constructed over or under the railway of the Company it becomes advisable that the electric telegraphic telephonic or signal wires or apparatus of the Company shall be altered the Company may execute any works reasonably necessary for such alterations and the reasonable expense of executing such works shall be borne by the Promoters:
- (11) Any additional expense in the alteration repair rebuilding or maintenance of any bridge or other work occasioned to the Company by the construction or user of the tramways shall be borne by the Promoters:
- (12) Tramway Number 9 where laid across the Company's Black Boy Branch Railway upon the level at Shildon Station shall be constructed and maintained in accordance with plans and sections to be approved by the engineer of the Company and under the superintendence and to the reasonable satisfaction of such engineer at the cost of the Promoters:

(13) The carriages used on the said Tramway Number 9 shall not be stopped on or otherwise allowed to interfere with or obstruct the traffic of the Company on the said level crossing and the traffic of the Company shall at all times have reasonable precedence over the traffic on the tramway:

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(14) If any difference arises under this section between the Promoters and the Company that difference shall be referred to arbitration under this Order.

12.—(1) The tramways shall be constructed on a gauge of 4 feet 8½ inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

Gauge and
width of
carriages.

(2) In the event of the tramways being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed 6 feet in width or such other width as may from time to time be prescribed by the Board of Trade.

13. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade and the road authority a plan showing the proposed mode of constructing laying down or renewing such tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

Provisions as
to construction
of tramways.

14. The rails of the tramways shall be such as the Board of Trade may approve and the Board of Trade may from time to time upon the application of the local authority or road authority of any district require the Promoters to adopt and apply such improvements in the tramways within such district including the rails thereof as experience may from time to time suggest having regard to the greater security of the public and advantage to the ordinary traffic and the Promoters shall with all reasonable despatch comply with any order made by the Board of Trade for the purpose of carrying out any such improvements.

Rails of tram-
ways.

15.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty

Penalty for not
maintaining
rails and roads
in good con-
dition.

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not exceeding five pounds for every day on which such non-compliance continues.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Sanitary authority to have access to sewers.

16. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or concurrence of the Promoters and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the said authority as if the same were a pipe for the supply of gas or water.

Tramway to be kept on level of surface of road.

17. If any road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Crossovers to be constructed in certain cases.

18. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than 9 feet 6 inches the Promoters shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Power to make additional crossovers and to double tramway lines.

19.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade and of the local authority make maintain alter and remove all such crossovers passing places sidings triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any stables carriage-houses or works of the Promoters.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on the

tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Promoters may with the like consents take up and remove such tramway or part thereof and reconstruct the same in such position as they may think fit. Provided that the uppermost surface thereof as reconstructed or altered shall be on a level with the surface of the road.

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(3) If in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than 9 feet 6 inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space shall intervene and such rail shall not be laid if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

(4) The construction of any works under this section shall be subject to the approval of the road authority.

20. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the road authority necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may subject to such conditions and in accordance in all respects with such regulations as the road authority may from time to time make construct in the same or any adjacent road and with the like consent subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued.

Temporary
tramways may
be made when
necessary.

If any difference arise between the Promoters and any road authority with respect to the reasonableness of any conditions or regulations or with respect to the mode of constructing any temporary tramway or tramways under the authority of this section the same shall be deemed a matter in difference within section 33 of the Tramways Act 1870 and the provisions as to arbitration of the said section and of this Order shall apply accordingly.

21. Any paving metalling or material excavated by the Promoters in the construction of the tramways from any road under the jurisdiction or control of any road authority may be applied by the Promoters so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person as he may appoint to

Application of
road materials
excavated in
construction
of works.

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Tramways not to
be opened until
certified by
Board of Trade.

22. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

23. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade nor unless and until the passing places are of a length satisfactory to the Board of Trade:

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:

(3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(a) that the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public;
may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with.

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every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

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24. For the purpose of working the tramways by mechanical power the Promoters may subject to the provisions of this Order—

Mechanical
power works.

- (a) Construct provide maintain and use on any lands acquired under the powers of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences:
- (b) Subject to the reasonable approval of the local and road authorities and to such reasonable terms and conditions as those authorities may impose and subject to the approval of the local authorities as to design of works place construct erect lay down make and maintain on above or below the surface of any street or road within any of the parishes in which the tramways are by this Order authorised to be constructed posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings:
- (c) With the consent of the owners and occupiers of any houses or buildings within any of the parishes in which the tramways are by this Order authorised to be constructed affix to such houses or buildings and maintain brackets electric conductors wires and apparatus.

25. All works to be executed by the Promoters in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as if they had been therein expressly mentioned Provided always that nothing in this Order contained shall authorise the opening or breaking up of any road outside any of the parishes in which the tramways are by this Order authorised to be constructed.

Mechanical
power works
to be subject
to Tramways
Act 1870.

26. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety:

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For regulating the entrance to, exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
Tramways Act
1870 as to bye-
laws by local
authority.

27. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special provi-
sions as to use
of electrical
power.

28. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

(1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

(4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of

the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:

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- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be:
- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over any tramways of the Promoters.

29.—(A) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration and in case any such alteration be made a telegraphic line of the Postmaster-General shall not be altogether removed from any highway (including the unmetalled or waste land by the side of the highway) without his consent.

For protection
of Postmaster-
General.

(B) In the event of the tramways being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent

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- injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within 10 yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :
- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Promoters is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

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Spennymoor**Traffic upon Tramways.*

30.—(1) The tramways may be used for the purpose of conveying—

- (a) Passengers and their personal luggage;
- (b) Small parcels not exceeding 56 lbs. in weight;
- (c) Goods minerals and parcels required for the purposes of the undertaking.

Purposes for
which tram-
ways may be
used.

(2) Subject as herein-after provided the tramways may also be used for the purpose of conveying animals goods minerals and parcels Provided always that the tramways shall not except as provided by subsection (1) of this

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section be used without the consent in writing of the North Eastern Railway Company for the purpose of conveying animals goods or minerals or parcels exceeding 56 lbs. in weight which but for the existence of the tramways would in the ordinary course have been carried on the lines of the said railway company as those lines exist at the commencement of this Order.

(3) Any matter in difference between the Promoters and the said railway company under this section shall be referred to the arbitration of a person nominated by the Board of Trade.

Promoters not
bound to carry
animals goods
&c.

31. The Promoters shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Provision as to
carriage of
animals
goods &c.

32. In case the Promoters carry animals goods minerals or parcels they may and when required by the local authority shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters to
run regular
daily service
of cars.

33.—(1) The Promoters shall run over the entire system of tramways by this Order authorised a sufficient and regular daily service of cars.

(2) Any matter in difference between the local authorities or any of them and the Promoters as to the sufficiency of the service upon the system or any part of the system shall from time to time be referred to the arbitration of a person nominated by the Board of Trade and the provisions of this Order as to arbitration shall apply accordingly.

(3) The Promoters shall be liable to a penalty of five pounds for every day during which they fail to give effect to any decision of a referee under this section and such penalty may be recovered as by this Order provided by any local authority interested.

Agreements
with respect
to traffic.

34. The Promoters may subject to the provisions of this Order and with the consent of the Board of Trade enter into agreements with any person or local or road authority authorised to enter into such agreements with respect to the receiving from or forwarding to such person or local or road authority any passengers animals goods minerals parcels or merchandise and the fixing collection and apportionment of rates charges or other receipts in respect of such traffic.

Rates.

Passengers'
fares.

35. The Promoters may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

As to fares on
Sundays and
holidays.

36. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

37. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof. Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

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Passengers'
luggage.

38.—(1) The Promoters at all times after the opening of the tramways or any part thereof for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays always excepted) at such hours not being later than 7 in the morning or earlier than half-past 5 in the evening respectively as the Promoters think most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance. On Saturdays the Promoters in lieu of running such carriages after 5.30 o'clock in the evening shall run the same at such hours between noon and 2 o'clock in the afternoon as may be most convenient for the said purposes.

Cheap fares
for labouring
classes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters to provide such service as may appear to the Board to be reasonable.

(3) The Promoters shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

39. The Promoters may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Rates and
charges for
animals goods
&c.

40. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters may by notice to be annexed to the list of rates and charges appoint.

Payment of
rates.

41. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of any district in which the tramways or such portion are or is wholly or partially situate or by twenty inhabitant ratepayers of such district or by the Promoters that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said

Periodical revision of rates and charges.

A.D. 1904. Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters.

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Miscellaneous.

As to purchase
of undertaking
by local autho-
rities.

42. Notwithstanding anything in this Order or in the Tramways Act 1870 contained the powers of purchase given by section 43 of that Act shall not be exerciseable by any of the local authorities of the districts through which the tramways shall pass until the expiration of a period of forty-two years from the date of this Order The period of twenty-one years in the said section mentioned shall in respect of the undertaking be deemed to be the period of forty-two years from the said date and the periods of seven years in the said section mentioned shall be deemed to be periods of seven years subsequent to such period of forty-two years.

Working
agreements.

43. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and carry into effect agreements with any local authority or person who are authorised to enter into such agreements and are the owners of or are working any tramways or light railways in any of the districts in which the tramways are situated or in any adjoining district which can be worked with any of the tramways of the Promoters with respect to—

- (a) The combined working by the Promoters and such local authority or person of the tramways and such other tramways or light railways ;
- (b) The granting of running powers over the tramways and obtaining running powers over such other tramways or light railways ; and
- (c) The fixing collection and apportionment of rates tolls and charges in connexion with such combined working or grant of running powers.

Agreements
with road
authorities.

44. The Promoters and any road authority may subject to the provisions of this Order and with the consent of the Board of Trade enter into any agreements with respect to the construction maintaining renewing repairing and using of the tramways situated within the district of such road authority and the rails plates sleepers and works connected therewith and the facilitating of the traffic over the same.

45. Nothing in this Order or in the Tramways Act 1870 contained shall prevent the Promoters borrowing money on the security of mortgages of the undertaking or shall make the consent or approval of the Board of Trade necessary to the validity or effect of any such mortgage. Provided that every mortgage of the undertaking shall be deemed to comprise all purchase money which may be paid to the Promoters in the event of a compulsory sale of the undertaking to the local authority under section 43 of the Tramways Act 1870 as amended by this Order and that any mortgage granted by the Promoters shall not be a charge upon the undertaking in the event of the undertaking being purchased by the local authority under the said section as so amended and that every mortgage deed granted by the Promoters shall be endorsed with notice to that effect.

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*Bishop
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Shildon and
Spennymoor.*

Saving as to
powers of bor-
rowing on
mortgage.

46. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Orders &c. of
Board of Trade.

47. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of
penalties.

48. The Promoters may subject to the provisions of this Order (but only for the purposes of the undertaking and not so as to acquire any exclusive right therein) acquire hold and use any patent or other rights and any licences to use patent rights relating to the construction or working of tramways or carriages used thereon.

Power to hold
patents.

49. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

Form and
delivery of
notices &c.

- (1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their secretary or clerk :
- (2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

50. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889

Provisions as
to arbitration.

A.D. 1904. shall apply to every such arbitration as if the arbitration were pursuant to a submission.

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Shildon and
Spennymoor.*
Saving for
general Acts.

51. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

SCHEDULE.

MAXIMUM RATES AND CHARGES FOR ANIMALS GOODS &c.

	Per Mile.	
	s.	d.
<i>Animals.</i>		
For every horse mule or other beast of draught or burden - per head	0	4
For every ox cow bull or head of cattle - - - - -	0	3
For every calf pig sheep or other small animal - - - - -	0	1½

Goods and Minerals.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung night-soil town refuse compost and all sorts of manure and all undressed materials for the repair of public roads or highways - - - - - per ton	0	2
For all iron iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - - per ton	0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - - per ton	0	4
For every carriage of whatever description - - - - -	1	0

Small Parcels.

	Any Distance.	
	s.	d.
For any parcel not exceeding seven pounds in weight - - -	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -	0	5

	Any Distance.	A.D. 1904.
	s. d.	
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight - - - - -	0 7	Bishop Auckland Shildon and Spennymoor.
For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight - - - - -	0 9	
For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sum as the person conveying the same may think fit :		

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of Single Articles of Great Weight.

	Per Mile.
	s. d.
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding - - - - - per ton	2 0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.	

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to the Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

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DEWSBURY CORPORATION.

Dewsbury Corporation.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Dewsbury to construct tramways in their borough.

Preliminary.

Short title.

1. This Order may be cited as the Dewsbury Corporation Tramways Order 1904.

Incorporation of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order—

The expression "the borough" means the borough of Dewsbury in the West Riding of the county of York :

The expression "the Corporation" means the mayor aldermen and burgesses of the borough acting by the Council :

The expression "the tramways" means the tramways and works by this Order authorised or (as the case may be) any part thereof :

The expression "the undertaking" means the undertaking by this Order authorised :

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(a) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them being part of their corporate estates ;

(b) By agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be

applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

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Provided that they shall not at any time hold for such purposes more than three acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

6. The Promoters may subject to the provisions of this Order—

Construction
of tramways.

- (a) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways herein-after described with all proper rails plates sleepers junctions turntables turnouts works and conveniences connected therewith or for the purposes thereof ;
- (b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say) :—

Tramway No. 1 (a double line 1 furlong 8·38 chains in length) commencing in the Market Place at a point thirty-five-yards or thereabouts measured in an easterly direction from the south-east corner of the premises occupied by the London City and Midland Bank passing along the Market Place and Wakefield Road and terminating in the last-mentioned road at the borough boundary :

Tramway No. 2 (a double line 1 furlong 4·32 chains in length) commencing in Vicarage Road at a point twelve yards or thereabouts measured in an easterly direction from the face of premises known as No. 34 Church Street passing along Vicarage Road and Long Causeway and terminating in Wakefield Road by a junction with

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Tramway No. 1 at a point six yards from the south-west corner of the premises of the Lancashire and Yorkshire Bank measured in a southerly direction:

Tramway No. 3 (a double line 2 furlongs 3·54 chains in length) commencing in Wakefield Road by a junction with Tramway No. 1 at a point thirty yards or thereabouts measured in a westerly direction from the north-east corner of the Town Hall and passing along Leeds Road and terminating in the last-mentioned road at the borough boundary:

Provided always that the powers of this Order shall not be exercised by the Promoters unless and until the Board of Trade are satisfied that a proper arrangement has been made for the working of the tramways when constructed in conjunction with other lines forming a junction or junctions therewith.

For protection
of main roads.

7. For the protection of the county council of the West Riding of Yorkshire (herein called "the county council") the following provisions shall have effect unless it is otherwise agreed in writing:—

The Promoters shall not be entitled to any annual payment from the county council under section 11 of the Local Government Act 1888 towards (a) the cost of maintenance repair or improvement of so much of any main road along which the tramways are laid as the Promoters are by this Order required to pave maintain and keep in repair and (b) the cost of any alteration in the level of any such road or any part thereof rendered necessary by reason of the construction of the tramways.

For protection
of frontagers in
Vicarage Road
and Long
Causeway.

8. Notwithstanding anything contained in this Order—

(1) Tramway No. 2 hereby authorised shall from the point of the commencement of the tramway as shown on the deposited plans for a distance of two hundred and forty yards measured along the centre of Vicarage Road and Long Causeway be constructed as a single line except between two points respectively ninety-three yards and one hundred and thirty-seven yards from such commencement between which points a passing-place may be constructed and such tramway shall be laid and maintained in the position shown and indicated on the plan signed on behalf of the Corporation by H. Dearden their surveyor and by Sam Shaw on behalf of certain owners lessees and occupiers of premises abutting on the said streets (a copy of which plan has been deposited at the office of the Board of Trade prior to the passing of the Act confirming this Order) and in no other position whatever:

(2) The position of the said Tramway No. 2 shall not be altered nor shall any other tramway line or work be laid made or constructed in Vicarage Road or Long Causeway without the

consent of the owners lessees and occupiers of such of the premises edged red on the said plan as shall be accessible from that part of the road wherein such alteration or addition is proposed to be laid made or constructed but such consent shall not be unreasonably withheld with respect to the exercise of the powers conferred by subsection (b) of the section of this Act whereof the marginal note is "Mechanical power works":

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- (3) Nothing shall be done under the powers conferred by this Order which shall damage prejudice or interfere with the means of access to any of the properties edged red on the said plan or any right of way light air water or any other easement or quasi-easement in connexion with or in respect of such properties or any of them.

9. Notwithstanding anything contained in this Order so far as regards Tramway No. 2 or any addition thereto or alteration thereof in Long Causeway a space of nine feet six inches at least shall always intervene between the wall of the premises belonging to the Lancashire and Yorkshire Railway Company on the east side of the road and the nearest rail of the tramway.

For protection
of Lancashire
and Yorkshire
Railway
Company.

10. The following provisions for the protection of the Great Northern Railway Company (in this section called "the Company") shall unless otherwise agreed between the Promoters and the Company in writing under their respective common seals apply and have effect:—

For protection
of Great
Northern Rail-
way Company.

- (1) All works by this Order authorised where the same will be made over any bridge or tunnel belonging to the Company shall be constructed and maintained so as not to interfere with the structure of such bridge or tunnel and in all things at the expense of the Promoters and to the reasonable satisfaction of the engineer of the Company (in this section called "the Engineer") according to plans sections and specifications to be previously approved by him or in case of difference between him and the engineer of the Promoters by an arbitrator to be appointed by the Board of Trade upon the application of either party after notice to the other. Before commencing the construction of any such works the Promoters shall give at least fourteen days notice in writing to the Company of their intention to execute the same:
- (2) The Promoters shall not in any manner in the execution maintenance or repair of any of their works obstruct hinder or interfere with the free uninterrupted and safe user of any railway or other work belonging to the Company or any traffic thereon:
- (3) The Promoters shall on demand pay to the Company the reasonable expense of the employment by the Company during the execution or repair of any work affecting any bridge or tunnel of the Company of a sufficient number of inspectors watchmen and

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signalmen for watching and signalling the same with reference to and during the execution or repair of any of their works and shall execute all such temporary works as may be necessary for the purpose of avoiding risk to any railway or work belonging to the Company or to any traffic thereon :

- (4) If by reason of the execution user or failure of any of the works of the Promoters or any act or omission of the Promoters or of their contractors or of any person in the employment of the Promoters or of their contractors any railway siding or work belonging to the Company shall be injured or damaged such injury or damage shall be forthwith made good by the Promoters at their own expense or in the event of their failing so to do then the Company may make good the same and the reasonable expenses thereof shall be repaid to the Company by the Promoters and the Promoters shall indemnify the Company against all losses which the Company may sustain and shall pay all costs charges and expenses which the Company may be put to or incur by reason of the execution user or failure of any of the works of the Promoters or any act or omission of the Promoters or their contractors or any person in the employment of the Promoters or their contractors :
- (5) If it shall be necessary owing to the construction of the tramways that any bridge or tunnel belonging to the Company over which the tramways will be constructed should be strengthened or reconstructed then the Company shall execute such strengthening or reconstruction as the case may be but in all things at the reasonable expense of the Promoters and the Promoters shall repay to the Company all expenses of whatever nature which the Company may properly incur in or in connexion with or arising out of the execution of any such strengthening or reconstruction and shall indemnify and hold harmless the Company against all actions losses charges expenses claims and demands whatsoever in connexion with or arising out of the matters aforesaid :
- (6) Any additional expense in the maintenance of any bridge or tunnel occasioned to the Company by the construction or user of the tramways shall be repaid by the Promoters to the Company at the end of every year :
- (7) If having regard to the proposed position of the works of the Promoters when considered in relation to the position of existing works of the Company at any point where the tramways will be constructed over any railway of the Company it shall be necessary that the position of the electric telegraphic telephonic or signal wires or apparatus of the company should be altered the Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Promoters :

(8) Any question arising between the Promoters and the Company under this section shall be determined unless otherwise agreed by an arbitrator to be appointed by the Board of Trade on the application of either party after notice to the other.

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11. The tramways shall not be used for the purpose of conveying animals goods minerals or parcels (except mails and passengers' luggage and except parcels not exceeding fifty-six pounds in weight) in competition with the traffic on the Great Northern Railway Provided that in no case shall traffic arising and terminating in the borough or within a radius of two miles from the Dewsbury Town Hall be deemed to be competitive with the traffic on such railway and that any question which may arise as to what is competitive traffic shall be determined by the Board of Trade.

For further protection of Great Northern Railway Company.

12.—(1) The tramways shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

Gauge and width of carriages.

(2) In the event of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

13. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

Provisions as to construction of tramways.

14. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of tramways.

15.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

Penalty for not maintaining rails and roads in good condition.

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(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of the borough that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramways to be kept on level of surface of road.

16. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Crossovers to be constructed in certain cases.

17. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Power to make additional crossovers &c. and to alter tramway lines.

18.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such crossovers passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for effecting junctions with other tramways or light railways or for providing access to any stables carriage-houses or works of the Promoters.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on the tramways and may with the like consent alter the position in the road of any of the tramways Provided that the uppermost surface thereof shall be on a level with the surface of the road.

(3) If in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the

owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

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(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

19. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to alter remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Temporary tramways may be made when necessary.

20.—(1) Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit. Provided that if any surplus material excavated from any main road is not used for the repair or maintenance of any main road to which the West Riding of Yorkshire County Council are liable to contribute the value thereof shall be deducted from the payments to be made by the county council to the Promoters under section 11 of the Local Government Act 1888.

Application of road materials excavated in construction of works.

(2) Any paving metalling or material excavated by the Promoters in the construction of the tramways from any road under the jurisdiction or control of any road authority other than the Promoters may be applied by the Promoters so far as may be necessary in or towards the reinstating of such road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person as he may appoint to receive the same at such place as he may direct. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Promoters and any road authority or

A.D. 1904. surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Dewsbury Corporation.

Tramways not to be opened until certified by Board of Trade.

21. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as to motive power.

22. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:

(3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion:—

(a) That the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public; may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Mechanical power works.

23. For the purpose of working any of the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

(a) Construct provide maintain and use on any lands appropriated or acquired by them under the powers of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences:

(b) Place construct erect lay down make and maintain on above or below the surface of any street or road within the borough posts brackets electric conductors wires boxes apparatus subways tunnels cables tubes and openings :

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Dewsbury Corporation.

(c) With the consent of the owners and occupiers of any houses or buildings within the borough affix to such houses or buildings or maintain brackets wires and apparatus.

24. All works to be executed by the Promoters or their lessees in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned. Provided always that nothing in this Order contained shall authorise the opening or breaking up of any street or road outside the borough.

Mechanical
power works to
be subject to
Tramways Act
1870.

25. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

26. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but

Amendment
of Tramways
Act 1870 as to
byelaws by
local authority.

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Special provisions as to use of electric power.

the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

27. The following provisions shall apply to the use of electric power under this Order unless such power is entirely contained in and carried along with the carriages:—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electric power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electric power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :

- (6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

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- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

28.—(a) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(b) In the event of any of the tramways being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-

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*Dewsbury
Corporation.*

General from being injuriously affected by the said act or work
Any difference which arises between the Postmaster-General
and the Promoters as to any requirements so made shall be
referred to arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electric energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electric tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

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*Dewsbury Corporation.**Traffic upon Tramways.*

29. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Traffic upon tramways.

30. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters' lessees not bound to carry animals goods &c.

31. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the Corporation shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as to carriage of animals goods &c.

Rates.

32.—(1) The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

Passengers' fares.

(2) Provided that the Promoters' lessees may appoint stages upon the tramways each of not less than half a mile in length and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

33. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public or local holiday any higher rates or charges than those levied by them on ordinary week days.

As to fares on Sundays and holidays.

34. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without

Passengers' luggage.

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Dewsbury Corporation.

any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Cheap fares
for labouring
classes.

35.—(1) The Promoters' lessees at all times after the opening of the tramways or any part thereof for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and
charges for
animals
goods &c.

36. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of
rates.

37. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical re-
vision of rates
and charges.

38. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the borough that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order

in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised. Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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Dewsbury
Corporation.*Miscellaneous.*

39. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Corporation and the Corporation may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Power to Cor-
poration to
work tram-
ways.

40. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Regulations.

41. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts or agreements and are the owners or lessees of any tramways or light railways in the borough or in any adjacent district which can be worked in conjunction with the tramways authorised by this Order with respect to—

Agreements
with other
local authori-
ties &c.

- (1) The construction of the tramways by this Order authorised :
- (2) The working running over use maintenance and management by the contracting parties or any or either of them of their respective tramways and light railways or any part or parts thereof and the fixing apportionment and distribution of the rates and profits arising therefrom or of a rent for the same :
- (3) The formation of a junction or junctions between any of the tramways or light railways of the contracting parties :

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- (4) The supply under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by any or either of them of motive power or of engines carriages and plant necessary for the purposes of such agreement :
- (5) The interchange accommodation and forwarding of carriages passengers and traffic coming from or destined for the respective undertakings of the contracting parties :
- (6) The appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways and light railways of the contracting parties to be worked in connexion Provided that no electrical energy shall be supplied or shall continue to be supplied by the Corporation under this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

Power to combine with other authorities.

42. The Promoters may with the consent of the Board of Trade from time to time subject to the provisions of this Order enter into and carry into effect agreements with any person or local authority who are authorised to enter into such agreements and are working tramways or light railways in any neighbouring district for the effective or more effective or economical working of the tramways within the borough by combination with such person or authority and may in pursuance of such agreement grant running powers over the tramways of the Promoters or run the tramcars belonging to the Promoters outside the borough and may demand and take rates and charges in respect thereof.

Mortgages to include rents &c.

43. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Orders &c. of Board of Trade.

44. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of penalties.

45. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Audit of accounts.

46. Sections 246 and 250 of the Public Health Act 1875 and section 58 (1) of the Local Government Act 1894 shall apply to the accounts of the

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receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

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Dewsbury Corporation.

47. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Protection of local authority.

48. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) :—

Form and delivery of notices.

(1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :

(2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

49. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Provisions as to arbitration.

50. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

Saving for general Acts.

SCHEDULE.

MAXIMUM RATES AND CHARGES FOR ANIMALS GOODS &C.

<i>Animals.</i>	Per Mile.	
	<i>s.</i>	<i>d.</i>
For every horse mule or other beast of draught or burden - per head	0	4
For every ox cow bull or head of cattle - - - - - "	0	3
For every calf pig sheep or other small animal - - - - - "	0	1½
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Goods and Minerals.

Per Mile.
s. d.

For all coals coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways

per ton 0 2

For all iron iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs per ton

0 2½

For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - per ton

0 3

For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - - per ton

0 4

For every carriage of whatever description - - - - -

1 0

Any
Distance.

Small Parcels.

s. d.

For any parcel not exceeding seven pounds in weight - - - -

0 3

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -

0 5

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight - - - - -

0 7

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight - - - - -

0 9

For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sum as the person conveying the same may think fit:

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Per Mile.
s. d.

For the Carriage of single Articles of great Weight.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding - - - - - per ton

2 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.

Regulations as to Rates.

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For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

Dewsbury Corporation.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

EAST HAM URBAN DISTRICT COUNCIL.

East Ham Urban District Council.

Order authorising the Urban District Council of East Ham to construct certain Tramways in their District authorised by the East Ham Urban District Council Tramways Order 1900 and for other purposes.

1. This Order may be cited as the East Ham Urban District Council Tramways Order 1904. Short title.

2. This Order and the East Ham Urban District Council Tramway Orders of 1898 and 1900 (in this Order called respectively "the Order of 1898" and "the Order of 1900") shall be construed together as one Order. Orders of 1898 and 1900 and this Order to be construed together.

3. The provisions of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation of Acts.

4. The several words terms and expressions to which by the Tramways Act 1870 meanings are assigned have in this Order the same respective meanings Provided that in this Order— Interpretation.

The expression "the tramway undertaking" includes the tramway undertakings authorised by the Order of 1898 the Order of 1900 and this Order :

The expression "the new tramways" means such of the tramways authorised by the Order of 1900 as were not commenced or completed or opened for public traffic within the prescribed period :

The expression "the Council" means the Council of the urban district of East Ham in the county of Essex.

*East Ham
Urban District
Council.*
Promoters.

5. The Council shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

New Tramways.

Powers of construction &c.

6. The provisions of section 7 of the Order of 1900 so far as they relate to the new tramways are hereby incorporated in this Order and this Order shall be read and construed as if such provisions were specifically enacted and set out herein.

New tramways to form part of tramway undertaking for all purposes.

7. Subject to the provisions of this Order the new tramways shall for all purposes form part of the tramway undertaking and the Promoters and their lessees and licensees may in respect of the tramways exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the tramway undertaking or any part thereof and may demand take and recover in respect of the new tramways or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Orders of 1898 and 1900.

Amendment.

For protection of Great Eastern Railway Company.

8.—(1) Notwithstanding anything contained in section 7 of the Order of 1900 the Promoters shall be at liberty to make such alterations in their tramways where the same are laid on the bridge crossing the Great Eastern Railway at Manor Park Station as are shown by the colour red on a plan signed by John Wilson on behalf of the Great Eastern Railway Company and by Adam Horsburgh Campbell on behalf of the Promoters (a copy of which is deposited at the offices of the Board of Trade) but shall not thereafter alter the position of such tramways without the consent of the said company in writing under their common seal.

(2) The Promoters shall not under the powers contained in this Order alter the position of their tramway where it crosses the Beckton Branch Railway of the said company nor lay down thereon any further or other lines of tramway or works than those now existing without such consent as aforesaid.

Alteration of tramways.

9. The Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on any of the tramways of the Promoters and may with the like consent subject in places where the Promoters may not be the road authority to the approval of that authority alter the position in the road of any of the said tramways of the Promoters or any part thereof respectively Provided that the uppermost surface thereof shall be on a level with the surface of the road Provided further that in the exercise of the powers of this section no rail

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shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention (which notice the Promoters shall give one month before commencing any alterations under this section) express their objection thereto.

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—
East Ham
Urban District
Council.

10. Section 22 (For protection of the Postmaster-General) of the Order of 1898 shall be and is hereby amended as follows:—

For protection
of Postmaster-
General.

(A) Subsection (3) thereof shall be read as if the words within brackets "or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point" were omitted and such words shall be deemed to be omitted from the said subsection:

(B) The following provision shall have effect in addition to and shall be read with the provisions contained in the said section:—

If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order or by the East Ham Improvement Act 1898 the Order of 1898 or the Order of 1900 authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for tramway purposes at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations.

OSSETT CORPORATION.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Ossett to construct Tramways in their Borough.

Ossett
Corporation.

Preliminary.

1. This Order may be cited as the Ossett Corporation Tramways Order 1904.

Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect

Incorporation
of Acts.

A.D. 1904. to the entry upon lands by the Promoters of the undertaking) and of the
Ossett Corporation. Tramways Act 1870 are hereby incorporated with this Order except where
the same are inconsistent with or expressly varied by this Order.

Interpretation. 3. The several words terms and expressions to which by the Acts in
whole or in part incorporated with this Order meanings are assigned have
in this Order the same respective meanings Provided that in this Order—

The expression "the borough" means the borough of Ossett in the West
Riding of the county of York :

The expression "the Corporation" means the mayor aldermen and
burgesses of the borough acting by the Council :

The expression "the tramways" means the tramways and works by
this Order authorised or (as the case may be) any part thereof :

The expression "the undertaking" means the undertaking by this Order
authorised :

The expression "mechanical power" includes steam electrical and every
other motive power not being animal power and the word "engine"
includes motor.

Promoters. 4. The Corporation shall be the Promoters for the purposes of this Order
and are in this Order referred to as "the Promoters."

Lands. 5. The Promoters may—
(a) Subject to the sanction of the Local Government Board and under
such conditions as they may prescribe from time to time appro-
priate and use for any of the purposes of this Order but
subject to the provisions (if any) under which such lands
were respectively acquired any lands not dedicated to public
use from time to time vested in them being part of their
corporate estates ;
(b) By agreement from time to time purchase and acquire for the
purposes of the undertaking such lands as they may require
and may from time to time sell let or dispose of any such
lands which may not be necessary for such purposes Provided
that all sums received by the Promoters from the sale of such
lands or from fines or premiums on leases of the same shall
be applied solely in repayment of outstanding loans and that
such moneys shall not be applied to the payment of instal-
ments or to payments into the sinking fund except to such
extent and upon such terms as may be approved by the Local
Government Board :

Provided that they shall not at any time hold for such
purposes more than three acres of land Provided also that
nothing in this Order shall exonerate the Promoters from
any indictment action or other proceeding for nuisance in
the event of any nuisance being caused or permitted by
them upon lands appropriated or taken under the powers of
this section.

Construction of Tramways.

A.D. 1904.

*Ossett
Corporation.*
Construction
of tramways.

6. The Promoters may subject to the provisions of this Order—

- (a) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all proper rails plates sleepers junctions turntables turnouts works and conveniences connected therewith or for the purposes thereof;
- (b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking:

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section:

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say):—

Tramway No. 1 (1 mile 1 furlong and 0·30 chain or thereabouts in length whereof 2 furlongs 8·90 chains will be double line and 6 furlongs 1·40 chains will be single line) commencing at the boundary of the borough and the urban district of Soothill Nether on the Dewsbury (otherwise called Wakefield) Road at a point seven yards or thereabouts measured in a northerly direction from the boundary stone on the southern side of the road passing along the Dewsbury Road Church Street Dale Street the Market Place and Station Road and terminating in the last-named road at a point six yards or thereabouts north-east of the north corner of the shop in the occupation of Samuel Barton Stead:

This tramway will be laid as a single line except at the following places where it will be laid as a double line (that is to say):—

- (a) In Dewsbury Road from the commencement of the tramway to a point 1·20 chains east thereof;
- (b) In Dewsbury Road between points respectively 1·30 chains west and 1·50 chains east of the Leeds Road;
- (c) In Dewsbury Road from a point 2·80 chains west of Naylor Street to a point opposite to Naylor Street;
- (d) In Dewsbury Road between points respectively 1·90 chains west and 1·10 chains east of Bridle Lane;

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- (e) In Dewsbury Road from a point 1·30 chains west of Church Street to a point opposite to Church Street;
- (f) In Church Street from Dewsbury Road to a point 1·40 chains south thereof;
- (g) In Church Street between points respectively four chains and 6·60 chains south of Dewsbury Road;
- (h) In Church Street between points respectively 7·65 chains and 4·85 chains north of Crownlands Lane;
- (i) In Church Street between points respectively 1·40 chains and 4·20 chains south of Crownlands Lane;
- (j) In Church Street between points respectively 8·60 chains and 5·80 chains north of Dale Street;
- (k) In Church Street from a point 1·70 chains north of Dale Street to that street;
- (l) In Dale Street from Church Street to a point 1·10 chains south thereof;
- (m) In the Market Place from a point 0·60 chain south of the termination of Dale Street to the termination of the tramway.

Tramway No. 2 (single line 2·95 chains or thereabouts in length) commencing in the Market Place by a junction with Tramway No. 1 at a point 18 yards or thereabouts measured in a south-westerly direction from the southern corner of the Grammar School passing across the Market Place and terminating at a point 11 yards or thereabouts measured in an easterly direction from the north-east corner of the shop in the occupation of Messrs. Salter and Salter.

Tramway No. 3 (single line 3·40 chains or thereabouts in length) commencing in the Market Place by a junction with Tramway No. 2 at the termination thereof passing along the Market Place and Bank Street and terminating in that street at a point 7 yards or thereabouts measured in a south-easterly direction from the south-eastern corner of the Wakefield and Barnsley Union Bank :

Provided that if the powers conferred by the Wakefield and District Light Railway Order 1901 or the Wakefield and District Light Railways (Extensions) Order 1902 of constructing light railways in those portions of any roads in which tramways are authorised to be constructed by this Order are exercised as by those Light Railway Orders provided the tramways shall not be constructed in the said portions of the said roads :

Provided always that the powers of this Order shall not be exercised by the Promoters unless and until the Board of Trade are satisfied that a proper arrangement has been made for the working of the tramways when constructed in conjunction with other lines forming a junction or junctions therewith.

7. For the protection of the county council of the West Riding of Yorkshire (herein called "the county council") the following provisions shall have effect unless it is otherwise agreed in writing:—

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Ossett Corporation.

For protection of main roads.

The Promoters shall not be entitled to any annual payment from the county council under section 11 (2) of the Local Government Act 1888 towards (a) the cost of maintenance repair or improvement of so much of any main road along which the tramways are laid as the Promoters are by this Order required to pave maintain and keep in repair and (b) the cost of any alteration in the level of any such road or any part thereof rendered necessary by reason of the construction of the tramways.

8. The tramways shall not be used for the purpose of conveying animals minerals or parcels (except mails and passengers' luggage and except parcels not exceeding fifty-six pounds in weight) in competition with the traffic on the Great Northern Railway Provided that in no case shall traffic arising and terminating in the borough and in the Urban District of Horbury or either of them be deemed to be competitive with the traffic on such railway and that any question which may arise as to what is competitive traffic shall be determined by the Board of Trade.

For protection of Great Northern Railway Company.

9.—(1) The tramways shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

Gauge and width of carriages.

(2) In the event of any of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

10. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down or renewal of any of the tramways except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by the said section.

Provisions as to construction of tramways.

11. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of tramways.

12.—(1) The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which

Penalty for not maintaining rails and roads in good condition.

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the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a penalty not exceeding five pounds for every day on which such non-compliance continues.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of the borough that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramways to
be kept on
level of surface
of road.

13. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Crossovers to
be constructed
in certain cases.

14. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a crossover or crossovers connecting the one tramway with the other and by the means of such crossover or crossovers the traffic shall when necessary be diverted from one tramway to the other.

Power to make
additional
crossovers &c.
and to alter
tramway lines.

15.—(1) The Promoters may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove all such crossovers passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for effecting junctions with other tramways or light railways or for providing access to any stables carriage-houses or works of the Promoters.

(2) Notwithstanding anything shown on the deposited plans the Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing ones or single lines in lieu of double or interlacing ones or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent alter the position in the road of any of the tramways Provided that the uppermost surface thereof shall be on a level with the surface of the road.

(3) If in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less

space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops and warehouses abutting on the place where such less space would intervene and such rail shall not be laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

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(4) In places where the Promoters may not be the road authority the construction of any works under this section shall be subject to the approval of that authority.

16. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to alter remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Temporary
tramways may
be made when
necessary.

17.—(1) Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit Provided that if any surplus material excavated from any main road is not used for the repair or maintenance of any main road to which the West Riding of Yorkshire County Council are liable to contribute the value thereof shall be deducted from the payments to be made by the county council to the Promoters under section 11 (2) of the Local Government Act 1888.

Application of
road materials
excavated in
construction
of works.

(2) Any paving metalling or material excavated by the Promoters in the construction of the tramways from any road under the jurisdiction or control of any road authority other than the Promoters may be applied by the Promoters so far as may be necessary in or towards the reinstating of such road and the maintenance for six months after completion of any of the tramways within the district of such road authority of so much of the roadway on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person as he may appoint to receive the same at such place as he may direct Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and

A.D. 1904. notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Promoters and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

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Tramways not
to be opened
until certified
by Board of
Trade.

18. The tramways shall not be open for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

19. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power:
- (3) The Promoters or any person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:
- (4) The Board of Trade if they are of opinion—
 - (a) That the Promoters or such person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or
 - (b) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public;may by order either direct the Promoters or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

20. For the purpose of working any of the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may—

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—
*Ossett Corporation.*Mechanical
power works.

(a) Construct provide maintain and use on any lands appropriated or acquired by them under the powers of this Order stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences:

(b) Place construct erect lay down make and maintain on above or below the surface of any street or road within the borough posts brackets electric conductors wires boxes apparatus subways tunnels cables tubes and openings:

(c) With the consent of the owners and occupiers of any houses or buildings within the borough affix to such houses or buildings or maintain brackets wires and apparatus.

21. All works to be executed by the Promoters or their lessees in any street or road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of the Tramways Act 1870 as in this Order incorporated as if they had been therein expressly mentioned. Provided always that nothing in this Order contained shall authorise the opening or breaking up of any street or road outside the borough.

Mechanical
power works
to be subject
to Tramways
Act 1870.

22. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety:

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages:

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

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Ossett
Corporation.
Amendment of
Tramways Act
1870 as to
byelaws by
local authority.

Special provi-
sions as to use
of electric
power.

23. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

24. The following provisions shall apply to the use of electric power under this Order unless such power is entirely contained in and carried along with the carriages :—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electric power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electric power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein

unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :

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Ossett
Corporation.

- (6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :

- (7) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramways.

25.—(a) Notwithstanding anything in this Order contained if any of the works by this Order authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of Postmaster-
General.

(b) In the event of any of the tramways being worked by electricity the following provisions shall have effect :—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be referred to arbitration :
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work

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Corporation.

shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Promoters as to any requirements so made shall be referred to arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Order authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Order at any works of the Promoters enter thereon for the purpose of inspecting the plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

(8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order:

A.D. 1904.

Ossell Corporation.

(9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:

(10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act:

(11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid:

(12) In this section the expression "the Promoters" includes any person owning working or running carriages over any of the tramways of the Promoters.

Traffic upon Tramways.

26. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Traffic upon tramways.

27. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters' lessees not bound to carry animals goods &c.

28. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the Corporation shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage not exceeding twenty-eight pounds in weight.

Provisions as to carriage of animals goods &c.

Rates.

29.—(1) The Promoters' lessees may demand and take for every passenger travelling upon the tramways including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile and for this purpose a fraction of a mile shall be deemed a mile.

Passengers' fares.

(2) Provided that the Promoters' lessees may appoint stages upon the tramways each of not less than half a mile in length and may demand and take for every passenger travelling upon the tramways including every expense incidental to the conveyance of such passenger any rates or charges not exceeding one penny for each two stages (or portion of that distance) travelled and for this purpose the fraction of a stage shall be deemed a stage.

30. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public or local holiday any higher rates or charges than those levied by them on ordinary week days.

As to fares on Sundays and holidays.

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Ossett
Corporation.
Passengers'
luggage.

31. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof. Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Cheap fares for
labouring
classes.

32.—(1) The Promoters' lessees at all times after the opening of the tramways or any part thereof for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day Good Friday and public holidays always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance. On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and
charges for
animals goods
&c.

33. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of
rates.

34. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical revision of rates
and charges.

35. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the borough that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all

or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section. Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised. Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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Miscellaneous.

36. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Corporation and the Corporation may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Power to
Corporation to
work tram-
ways.

37. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Regulations:

38. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and fulfil contracts and agreements with any local authority or person who are authorised to enter into such contracts or agreements and are the owners or lessees of any tramways or light railways whether within or without the borough or in any adjacent district which can be worked in conjunction with the tramways authorised by this Order with respect to—

Agreements
with other local
authorities &c.

(1) The construction of the tramways by this Order authorised:

(2) The formation of a junction or junctions between any of the tramways or light railways of the contracting parties:

(3) The working running over use maintenance and management by the contracting parties or any or either of them of their respective tramways or light railways or any part or parts thereof and the fixing apportionment and distribution of the rates and profits arising therefrom or of a rent for the same:

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(4) The supply under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by any or either of them of motive power or of engines carriages and plant necessary for the purposes of such agreement :

(5) The interchange accommodation and forwarding of carriages passengers and traffic coming from or destined for the respective undertakings of the contracting parties :

(6) The appointment of officers and servants and generally all such matters as may be deemed desirable for enabling the tramways and light railways of the contracting parties to be worked in connexion Provided that no electrical energy shall be supplied or shall continue to be supplied by the Corporation under this section in any district in which any local authority company or person shall be supplying energy under statutory authority without the consent in writing of such local authority company or person.

Power to combine with other authorities.

39. The Promoters may with the consent of the Board of Trade from time to time subject to the provisions of this Order enter into and carry into effect agreements with any person or local authority who are authorised to enter into such agreements and are working tramways or light railways in any neighbouring district for the effective or more effective or economical working of the tramways within the borough by combination with such person or authority and may in pursuance of such agreement grant running powers over the tramways of the Promoters or run the tramcars belonging to the Promoters outside the borough and may demand and take rates and charges in respect thereof.

Mortgages to include rents and rates.

40. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Orders &c. of Board of Trade.

41. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of penalties.

42. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Audit of accounts.

43. Sections 246 and 250 of the Public Health Act 1875 and section 58 (1) of the Local Government Act 1894 shall apply to the accounts of

the receipts and expenditure of the Promoters and of their committees and officers with respect to the tramways and the undertaking and to the audit thereof as if such accounts related to receipts and expenditure under the Public Health Act 1875.

A.D. 1904.
Ossett Corporation.

44. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Protection of local authority.

45. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) :—

Form and delivery of notices.

- (1) Every notice consent or approval shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary :
- (2) Notices and other documents required or authorised to be served under this Order may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any local authority or company any such notice or other document shall be delivered or sent by post in a prepaid letter addressed to the clerk to the local authority at his office or to the secretary of the company at their registered or principal office.

46. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration as if the arbitration were pursuant to a submission.

Provisions as to arbitration.

47. Nothing in this Order contained. shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

Saving for general Acts.

SCHEDULE.

MAXIMUM RATES AND CHARGES FOR ANIMALS GOODS &c.

<i>Animals.</i>	Per Mile.	
	s.	d.
For every horse mule or other beast of draught or burden - per head	0	4
For every ox cow bull or head of cattle - " "	0	3
For every calf pig sheep or other small animal - " "	0	1½
E 3	69	

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Ossett Corporation.

Goods and Minerals.

Per Mile.
s. d.

For all coals coke culm charcoal cannel limestone chalk lime salt sand
fireclay cinders dung compost and all sorts of manure and all
undressed materials for the repair of public roads or highways

per ton 0 2

For all iron iron ore pig iron bar iron rod iron sheet iron hoop iron
plates of iron slabs billets and rolled iron bricks slag and stone
stones for building pitching and paving tiles slates and clay (except
fireclay) and for wrought iron not otherwise specifically classed
herein and for heavy iron castings including railway chairs per ton

0 2½

For all sugar grain corn flour hides dyewoods earthenware timber
staves deals and metals (except iron) nails anvils vices and chains
and for light iron castings - - - - - per ton

0 3

For cotton wools drugs and manufactured goods and all other wares
merchandise fish articles matters or things not otherwise specially
classed herein - - - - - per ton

0 4

For every carriage of whatever description - - - - -

Any
Distance.
s. d.

1 0

Small Parcels.

s. d.

For any parcel not exceeding seven pounds in weight - - - - -

0 3

For any parcel exceeding seven pounds and not exceeding fourteen
pounds in weight - - - - -

0 5

For any parcel exceeding fourteen pounds and not exceeding twenty-
eight pounds in weight - - - - -

0 7

For any parcel exceeding twenty-eight pounds and not exceeding
fifty-six pounds in weight - - - - -

0 9

For any parcel exceeding fifty-six pounds in weight but not exceeding
five hundred pounds in weight such sum as the person conveying
the same may think fit:

Provided always that articles sent in large aggregate quantities
although made up in separate parcels such as bags of sugar coffee
meal and the like shall not be deemed small parcels but that
term shall apply only to single parcels in separate packages.

Per Mile.
s. d.

For the Carriage of Single Articles of Great Weight.

For the carriage of any iron boiler cylinder or single piece of
machinery or single piece of timber or stone or other single article
the weight of which including the carriage exceeds four tons but
does not exceed eight tons such sum as the person conveying the
same may think fit not exceeding - - - - - per ton

2 0

For the carriage of any single piece of timber stone machinery or
other single article the weight of which with the carriage exceeds
eight tons such sum as the person conveying the same may think fit.

Regulations as to Rates.

A.D. 1901.

*Ossett
Corporation.*

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

SUNDERLAND CORPORATION.

Order authorising the Mayor Aldermen and Burgesses of the County Borough of Sunderland to construct an Additional Tramway in their Borough.

*Sunderland
Corporation.*

1. This Order may be cited as the Sunderland Corporation Tramway Order 1904. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation
of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order— Interpretation.

The expression "the Act of 1899" means the Sunderland Corporation Act 1899:

The expression "the Order of 1902" means the Sunderland Corporation Tramways Order 1902:

The expression "the tramway" means the tramway and works by this Order authorised:

The expression "the Corporation tramways" has the meaning assigned thereto by the Act of 1899 as extended by the Order of 1902 and this Order:

The expression "the borough" means the county borough of Sunderland:

A.D. 1904.
Sunderland
Corporation.

The expression "the Corporation" means the mayor aldermen and burgesses of the borough acting by the Council :

The expression "mechanical power" includes steam electrical and every other motive power not being animal power and the word "engine" includes motor.

Promoters.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

5. The Promoters may—

(a) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for the purposes of the Corporation tramways but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in the Promoters being part of their corporate estates ;

(b) By agreement from time to time purchase take on lease and acquire for the purposes of the Corporation tramways such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided that they shall not at any time hold for such purposes more than one acre of land in addition to the lands they are already authorised to hold for those purposes Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction
of tramway.

6. The Promoters may subject to the provisions of this Order—

(a) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway herein-after described with all proper rails plates sleepers channels (including in that expression channels passages and tubes for ropes cables and electric lines) junctions turntables turnouts crossings and passing places carriages works mechanical appliances plant

and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the Corporation tramways ;

A.D. 1904.

Sunderland Corporation.

- (b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms carriage engine boiler and dynamo houses or other buildings yards works and conveniences for the purposes of the Corporation tramways :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramway will be wholly situated within the borough and is as follows :—

Tramway No. 1 (single line) 1 furlong 1·2 chains in length commencing in Bridge Street by a junction with the existing tramway at a point therein 8 yards or thereabouts north of the junction of West Wear Street with Bridge Street passing thence into and along West Wear Street and Bedford Street to and terminating in High Street West by a junction with the tramway authorised by the Act of 1899 and therein referred to as Tramway No. 1 at a point 8 yards or thereabouts west of the junction of Bedford Street with High Street West.

7. The tramway shall for all purposes form part of the Corporation tramways and the Promoters and their lessees may in respect of the tramway exercise and enjoy all and the like powers rights privileges and authorities which they now may or are empowered to exercise and enjoy and shall be subject and liable to the like penalties conditions restrictions and stipulations as they are subject and liable to with respect to the Corporation tramways and may demand take and recover in respect of the tramway or any part or parts thereof the like tolls rates and charges for the use thereof and for the conveyance thereon of traffic of all kinds and for the use of carriages placed and run thereon by them as they are authorised to demand and take in respect of the tramways authorised by the Act of 1899 and the Order of 1902.

Tramway to form part of Corporation tramways for all purposes.

8. Before applying the tramway revenue in making any payment to the reserve fund as authorised by the Act of 1899 the Promoters shall pay the interest on moneys borrowed by them under and provide the requisite instalments and sinking fund prescribed by the Act of 1899 and required in relation to any moneys borrowed under the provisions of the Order of 1902 or of this Order and section 61 (Application of revenue of undertaking) of the Act of 1899 shall be construed accordingly.

Application of tramway revenue.

A.D. 1904.

Sunderland Corporation.
Saving for
general Acts.

9. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates or charges authorised by this Order.

WEST HAM CORPORATION.

West Ham Corporation.

Order authorising the Mayor Aldermen and Burgesses of the County Borough of West Ham to construct a Tramway in their Borough.

Preliminary.

Short title.

1. This Order may be cited as the West Ham Corporation Tramways Order 1904.

Incorporation
of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings Provided that in this Order—

The expressions “the Act of 1898” “the Act of 1900” and “the Act of 1902” mean respectively the West Ham Corporation Act 1898 the West Ham Corporation Act 1900 and the West Ham Corporation Act 1902;

The expression “the borough” means the county borough of West Ham;

The expression “the Corporation” means the mayor aldermen and burgesses of the borough acting by the Council;

The expression “the tramway” means the tramway and works by this Order authorised;

The expression “the tramway undertaking” means and includes the tramways and works connected therewith authorised by the Act of 1900 the Act of 1902 and this Order and any tramways and works connected therewith which have been or may be purchased by the Corporation or which for the time being belong to the Corporation;

The expression “mechanical power” has the meaning assigned to it by the Act of 1898.

Promoters.

Promoters.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

5. The Promoters may—

A.D. 1904.

- (a) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for the purposes of the tramway undertaking but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them being part of their corporate estates;

*West Ham
Corporation.*
Lands by
agreement.

- (b) By agreement from time to time purchase and acquire for the purposes of the tramway undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board :

Provided that they shall not at any time hold for such purposes under the provisions of this Order more than one acre of land in addition to the lands which they are already authorised to hold for those purposes Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands taken or appropriated under the powers of this section.

Construction of Tramway.

6. The Promoters may subject to the provisions of this Order—

Construction
of tramway.

- (a) Construct and maintain in accordance with the plans and sections deposited at the offices of the Board of Trade for the purpose of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway herein-after described with all proper rails points junctions plates works and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the existing or authorised tramways of the Promoters or for the purposes thereof;
- (b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the tramway undertaking :

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*West Ham
Corporation.*

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramway will be wholly situate within the borough and is as follows (that is to say) :—

A tramway (6·40 chains or thereabouts in length) commencing in The Grove Stratford by a junction with the existing tramway in that road at a point 2·14 chains or thereabouts north of the junction of Salway Place with that road thence passing along The Grove in a southerly direction and terminating in The Broadway Stratford by a junction with the existing tramways in that road at a point 0·60 chain or thereabouts west of the junction of The Grove with Romford Road.

The tramway will be laid as a double line throughout.

As to construction of tramway in widened road.

7. If any widening or any part of any widening of The Grove Stratford shall be completed before the commencement of the construction of the tramway authorised to be constructed by this Order in the portion of such street or road so widened the Promoters may with the consent of the Board of Trade and subject to the provisions of this Order as to reconstruction of existing lines construct such tramway in the centre of the portion of the street or road as so widened.

Reconstruction of existing tramways.

8.—(1) The Promoters may with the consent of the Board of Trade within the period of five years from the date of this Order or such extended period as the Board of Trade may allow relay the plates and rails of their existing tramways or otherwise alter the present construction thereof within the borough for the purpose of adapting the same for working with the tramway.

(2) If in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Promoters within three weeks after receiving the notice from the Promoters express their objection thereto.

Gauge and width of carriages.

9.—(1) The Tramway shall be constructed on a gauge of four feet eight and a half inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters.

(2) In the event of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet in width or such other width as may from time to time be prescribed by the Board of Trade.

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West Ham Corporation.

10. Subject to the provisions of this Order the provisions herein-after mentioned of the West Ham Corporation Acts shall so far as they are applicable in that behalf extend and apply mutatis mutandis to the tramway and undertaking by this Order authorised in like manner in every respect as if the tramway and undertaking authorised by this Order formed part of the tramway undertaking and for the purposes of tolls rates and charges the tramway shall be deemed to form part of the tramway undertaking. Provided that in the application of the said provisions the expressions referring to the tramways and tramway undertakings regulated or authorised by the said Acts and the expression "this Act" shall be construed to mean respectively the tramway and the undertaking by this Order authorised and this Order. The provisions of the said Acts herein-before referred to are:—

Extending to this Order certain provisions of Acts of 1898 1900 and 1902.

The West Ham Corporation Act 1898—

Section 6 Corporation to work tramways :

Section 8 Power to work tramways by mechanical power :

Section 9 As to laying down and maintaining works necessary for using mechanical power :

Section 10 As to use of electric power :

Section 12 Byelaws :

Section 13 Amendment of Tramways Act 1870 as to byelaws by local authorities :

Section 14 Orders and byelaws :

Section 15 As to recovery of penalties :

The West Ham Corporation Act 1900—

Section 33 Inspection by Board of Trade :

Section 34 Tramways to be kept on level of road :

Section 35 Further provisions as to construction of tramways :

Section 36 As to rails of tramways :

Section 37 Power to make interlacing lines &c. and crossings :

Section 38 Power to make crossings &c. :

Section 39 Application of road materials excavated in construction of works :

Section 41 Temporary tramway to be made where necessary :

Section 46 For protection of observatories :

Section 47 Regulations :

Section 53 Provision as to general Tramways Acts :

A.D. 1904.

The West Ham Corporation Act 1902—

*West Ham
Corporation.*

Section 13 For protection of Postmaster-General :

Section 15 Penalty for not maintaining rails and roads :

Section 45 Tramway revenue :

Provided that nothing in this Order shall empower the Promoters to construct any station for generating electrical power nor any works outside the borough nor to create or to permit a nuisance.

Attachment of
brackets to
buildings.

11. For the purpose of working the tramway by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may with the consent of the owners and occupiers of any houses or buildings within the borough affix to such houses or buildings and maintain posts brackets electric conductors wires and apparatus.

Mortgage may
include rents.

12. The Promoters may include in any mortgage of the local rate made under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of the Tramways Act 1870 or this Order and the tolls charges and sums authorised to be taken or received by them under the provisions of this Order.

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